

Republika ng Pilipinas
LUNGSOD NG DABAW
Tanggapan ng Sangguniang Panlungsod
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EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE SANGGUNIANG PANLUNGSOD, CITY OF DAVAO, HELD ON WEDNESDAY, NOVEMBER 17, 1982.

PRESENT:

Vice Mayor Cornelio P. Maskarino, Presiding Officer,
Councilors Pantaleon V. Pelayo, Jr., Julieta C.
Feliciano, Tomas Monteverde, Jr., Jose A. Jison,
Alfredo H. Vergara, Benigno S. Bangoy, Cipriano
Villafruerte, Jr., Antonio S. Castillo, Diosdado A.
Mahipus and Robert Allan Limso.

ABSENT:

Councilors Valentino C. Banzon, Alexis C. Almendras,
Bienvenido C. Amora, Dominador B. Zuno, Jr., Domingo
N. Vidanes and Exuperio M. Porras

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RESOLUTION NO. 894

Proposed Expanded Zoning Ordinance of Davao City, as recommended by the Committee on Planning and Development of the Sangguniang Panlungsod for approval, was presented by Councilor Pantaleon V. Pelayo, Jr., Chairman of the Committee on Planning and Development for consideration and appropriate action of the Body.

Councilor Pelayo, Jr. informed the Body that the Committee on Planning and Development had conducted two public hearings intended to generate necessary participation and involvement from the various segments of the City's constituency from both the public and private sectors through the invited participants, respectively, in order to hear their views and opinions on the matter under consideration. Thorough discussions took place, oftentimes critical that led to the Committee's final recommendation on the matter.

The President of the Davao City Chamber of Commerce, Atty. Martin T. Suelto and the President of the Davao Board of Realtors, Mr. Bernardo Josen and Atty. Felipe Capili, representing the Citizen's Consultative Assembly and Consultant of the Davao Board of Realtors, were present during the previous session and manifested their desires for the early approval of the Expanded Comprehensive Zoning Ordinance of the City of Davao in order to hasten the progress of the City. Councilor Pelayo, Jr. narrated the rationale, intents and necessity of the Expanded Comprehensive Development plan of the City as to its land uses and development.

Councilor Jose A. Jison proposed to amend by deleting the green line on the Map of the Expanded Zoning Development, representing the 30 meter easement on both sides of the Diversion Road from Panacan to Bangkal as the National government had already established a 14 meter easement on both sides of said road for National highways traversing urban areas. He further rationalized to the effect that the landowners affected therein could maximize the use of their properties for economic purposes. The proponent accepted the amendment.

Resolution No. 894, Ordinance No. 363,
series of 1982, cont'd.:

After careful deliberation, on motion of Counciler Pantaleon V. Pelayo, Jr., duly seconded by Councilors Jose A. Jison, Benigno S. Bangey, Antonio S. Castillo, as amended by Counciler Jose A. Jison, co-sponsored by Councilors Jose A. Jison and Tomas Monteverde, Jr., it was

RESOLVED, AS IT IS HEREBY RESOLVED, To approve the Expanded Comprehensive Zoning Plan of Davao City, as prepared by the Davao City Planning and Development Board;

RESOLVED, FURTHER, To approve the Comprehensive Development Plan for Davao City for the year 1979-2000;

RESOLVED, FINALLY, To approve an Ordinance, entitled:

ORDINANCE NO. 363

AN ORDINANCE ADOPTING A COMPREHENSIVE ZONING REGULATIONS FOR THE CITY OF DAVAO AND PROVIDING FOR THE ADMINISTRATION, ENFORCEMENT AND AMENDMENT THEREOF AND FOR THE REPEAL OF ALL ORDINANCES IN CONFLICT THEREWITH.

Be it Ordained by the Sangguniang Panlungsod, City of Davao, that:

ENACTING CLAUSE

WHEREAS, the National Government, has spearheaded and now assist in and coordinates the activities of national and regional agencies and local governments in human settlements planning for major urban and urbanizing centers;

WHEREAS, for this purpose, the government has conceived and operationalized the Pamayang Filipino sa Dagang Lipunan Program which envisions self reliant and sustained community planning that would contribute meaningfully to a unified and progressive national community;

WHEREAS, the Pamayang Filipino Program is concerned with assisting in and expediting the preparation of Town Plans which shall facilitate and assure implementation of the country's development projects;

WHEREAS, the implementation of the Davao City Comprehensive Development Plan would require the enactment of regulatory measures to translate its planning goals and objectives into reality;

WHEREAS, a Zoning Ordinance is one such regulatory measures which is an important tool for the implementation of the above plan;

NOW, THEREFORE, The Sangguniang Panlungsod of Davao City, in session assembled hereby adopts the following Zoning Ordinance.

ARTICLE I
AUTHORITY AND PURPOSES

Section 1.- AUTHORITY - This ordinance is enacted pursuant to Section three (3) of Republic Act No. Twenty two hundred and Sixty Four (R.A. 2264), otherwise known as the Local Autonomy Act, authorizing cities to adopt zoning ordinances and regulations subject to the approval of the City Mayor and pursuant to Memorandum Circular No. 74-20 of the Secretary of the Department of Local Government and Community Development dated 11 March 1974, authorizing the Local Legislative Bodies to create and organize their respective City Planning and Development Boards; and pursuant further to the provisions of Presidential Decree No. 933, which requires the concurrence of the Human Settlements Regulatory Commission with all zoning ordinances.

Resolution No. 894, Ordinance No. 363,
series of 1982, cont'd.:

Section 2. - PURPOSES - This Ordinance is enacted for the following purposes:

1. Guide, control and regulate future growth and development of Davao City in accordance with its Comprehensive Development Plan;
2. Protect the character and stability or conservation, agricultural, urban, urbanizing, residential, commercial, industrial, and open spaces, within the locality, and promote the orderly and beneficial development of the same;
3. Promote and protect the health, peace, comfort, convenience, and general welfare of the inhabitants in the locality;
4. Provide adequate light, air, privacy and convenience of access to property;
5. Prevent undue concentration of activities which collectively may cause undue harm to the population;
6. Regulate the location and use of buildings and lands in such manner as to obviate the danger to public safety caused by undue interference with existing or prospective traffic movements on such streets and thoroughfares.

Section 3. - GENERAL ZONING PRINCIPLE - This Zoning Ordinance is based on the Comprehensive Development Plan for the City of Davao in order to achieve the goals, objectives, and policies contained in such Comprehensive Development Plan.

ARTICLE II

DEFINITIONS

When used in this Ordinance, the words, terms and phrases enumerated hereunder shall be understood to have the meaning correspondingly indicated as follows:

1. **Accessory/Incidental Use:** A use incidental and subordinate to the principal use of the building and/or land.
2. **Accretion:** The gradual and imperceptible accumulation of land on existing property by natural cause in the case of lands located along rivers, lakes or other waters.
3. **Additions, alterations, repairs:** Changes in an existing building involving interior or exterior work and/or increase or decrease in its area.
4. **Alley:** Any public space or thoroughfare which has been dedicated or deeded to the public or public use as a passageway with a width of not more than 3.00 meters.

Resolution No. 894, Ordinance No. 363,
series of 1982, cont'd.,

5. Apartment: Any building or edifice containing several independent and furnished or semi-furnished apartment, regularly leased to tourists and other travellers for dwelling on a more or less long term basis, and offering basic services to its tenants, similar to hotels.
6. Apartment: A room or suite of two or more rooms, designed and intended for, or occupied by one family for living, sleeping, and cooking purposes.
7. Boarding House: A house with several sleeping rooms where boarders are provided with lodging and meals for a fixed sum paid by the week or month.
8. Botanical Garden: A tract of land used for the culture and study of plants, collected and grown for scientific and display purposes.
9. Building: A constructed edifice designed to stand more or less permanently, covering a space of land, usually covered by a roof, more or less enclosed by walls and supported by columns, and serving as a dwelling, factory, shelter for animals, etc.
10. Building Area: The remaining space in a lot after deducting the required minimum open space.
11. Building Accessory: A building, subordinate to the main building located on the same lot, the use of which is necessary incidental to the use and enjoyment of the main building. Example: Servant's quarters, garage, etc.
12. Building Main: The principal structure wherein the prime use of the land on which it is situated is conducted.
13. Cottage Industry: Any establishment or firm which conforms to the standards set forth by the National Cottage Industry Development Authority (NACIDA).
14. Dormitory: A building where persons are provided with board and lodging facilities in common halls, for a compensation.
15. Dwelling: Any building or any portion thereof intended or designated to be built, used, rented, leased, let or hired out to be occupied, or which are occupied for living or residential purposes.
16. Dwelling, One-Family Detached: A one-family house having one party wall and two side yards.
17. Dwelling, One-Family, Semi-Detached: A one family dwelling as above defined except that it is provided with one side yard.

Resolution No. 894, Ordinance No. 363,
series of 1982, cont'd.:

18. Dwelling, Two-Family-Detached: A house or structure divided into two separate and independent living quarters by a wall extending from the floor to the ceiling and provided with two side yards. Each portion provided complete living facilities for one household.
19. Dwelling, Two-Family, Semi-Detached: A two family dwelling as defined above except that it is provided with one side yard.
20. Dwelling, Multi-Family: A building used as a house or residents of three (3) or more families living independently from one another, each occupying one or more rooms as a single housekeeping unit.
21. Easement: An encumbrance imposed on an immovable (see New Civil Code of the Philippines) for the benefit of another, immovable belonging to a different owner.
22. Family: A group of individuals related by blood, living under one roof and considered as part of a single housekeeping unit,
23. Filling Station: A retail station servicing automobiles and other motor vehicles with gasoline and oil only.
24. Foreshore: The strip of land that lies between the high and low water marks and that is alternately wet and dry according to the flows of the tide.
25. Garage: A building or portion thereof in which motor vehicle(s) is/are stored, repaired, or kept.
26. Garage, Commercial: A garage where automobiles and other motor vehicles are housed, maintained, equipped, repaired or kept for remuneration, hire or sale.
27. Garage, Private: A building or a portion of a building in which only motor vehicles used by the tenants of the building or buildings on the premises are stored or kept.
28. Guard House: An accessory building or structure used by a security guard while on duty.
29. Home Occupations: An occupation or business conducted with the dwelling unit.
30. Hospital - An institution providing health service, primarily for in-patient, and medical or physical care of the sick or the injured including an integral parts thereof, such related facilities as laboratories, out-patient department, training facilities, and staff offices.
31. Hotel: A building or a part thereof with rooms occupied or intended to be occupied for hire as temporary abiding place or individuals. It is usually provided with a general kitchen and public dining room service without provision for cooking in any individual, suit or room.

Resolution No. 894, Ordinance No. 363,
series of 1982, cont'd.:

32. Lot: A parcel of land on which a principal building and its accessories are placed or may be placed together with the required open space.
33. Lot, Depth of: The average horizontal distance between the front and the rear lot lines.
34. Manufacturing Industry: An industry which involves the chemical or mechanical transformation of inorganic products whether it is done in factory or in the worker's house.
35. Motel: Any structure with several separate units with sufficient parking space primarily located along the highway or close to a highway where motorists may obtain lodging and in some instances, meals.
36. Museum: A non-profit, non-commercial establishment operated as a repository, or a collection of natural, scientific, literary or cultural objects of interest such as works of art. This does not include the regular sale or distribution of the objects collected.
37. Nursery/Day Care Center: A place where children are temporarily cared for the trained in the parent's absence.
38. Open Storage: A designated area for storing bulks of any particular stock without any roof and exposed to the elements.
39. Park: A pleasure ground set apart for recreation of the public to promote its health and enjoyment.
40. Parking Building: A building of several floors used for temporary parking of motor vehicles which may be provided with services allowed for service stations.
41. Parking Lot: An off-street open area, principally used for parking motor vehicles whether for compensation or not, by the public clients or customers.
42. Private Pet House: A building or structure for keeping domestic pets, for the enjoyment as well as protection of the resident family members.
43. Professional Office: The Office of a person engaged in any occupation, vocational or calling, not purely commercial, mechanical or agricultural, in which a professed knowledge or skill in some department of science or learning is used to serve the interest or welfare of others by its practical application.
44. PUB Terminal: A main station or designated place where public utility buses/vehicles shall only load or unload passengers and/or goods.
45. Reclamation: Land reclaimed from the sea and other bodies of water.

Resolution No. 394, Ordinance No. 363,
series of 1982, cont'd.:

46. Recreational Center: A place, compound or building or a portion thereof, open to the public for recreational and entertainment purposes.
47. Residential Condominium: A building containing at least five or more apartment units with common areas and facilities, each apartment owner having exclusive ownership and possession of his apartment.
48. Servant's Quarters: A room within the dwelling, or in an accessory building where servant's maids, or helpers of the family are housed.
49. Service Station: A building and its premises where gasoline, oil, batteries, tires and car accessories may be supplied and dispensed at retail and where, in addition, the following services may be rendered among others.
- 49.1 Sale and servicing of minor motion components and accessories of spark plugs, batteries and distributor.
- 49.2 Tire servicing and repair, but not recapping or regrooving
- 49.3 Radiator cleansing and flushing
- 49.4 Washing and polishing, and sale of automotive washing and polishing materials, greasing and lubrication.
- 49.5 Sales of soft drinks, packaged foods, tobacco and similar convenient goods for service station customers as accessory and incidental to the principal operations.
- 49.6 Provisions of road maps and other informational materials to customers provisions of rest room facilities.

Major, mechanical and body work, straightening of body parts, painting, welding, storage of automobiles which are not in operating conditions, or other works involving noise, glare, fumes, smoke or other characteristics to any extent greater than normally found in service stations are not permitted at a service station.

50. Shopping Center: A group of (not less than 15) contiguous retail stores, originally planned and developed as a single unit, with immediate adjoining off-street parking facilities.
51. Store: A building or structure devoted exclusively to the retail sale of a commodity or commodities.
52. Theater: A structure used for dramatic, operatic, motion picture and other performances for admission to which entrance fee or money is received but no audience participation and meal service are allowed.
53. Tourist Inn or Pension House: Any building or structure regularly catering to tourist and travellers, containing several independent rooms, providing common facilities such as toilets, bathrooms, living and dining rooms and kitchen, and where a combination of board and lodging may be provided.

Resolution No. 894, Ordinance No. 363,
series of 1982, cont'd.:

54. Warehouse: Any building/structure, the primary or principal purpose of which is the storage in bulk or in large quantities of goods, wares, merchandise, utilities, including hemp, cement, fertilizer, carbon, forest products, etc. Said building/structures must be of such size that it can accommodate inside and within its premises, cargo/delivery trucks to facilitate the loading and unloading of the stored items/commodities therein.

Such structures maybe provided with living quarters and office spaces.

55. Yard: An open space at grade between a building and the adjoining lot lines, unoccupied and unobstructed by any portion of a structure from the ground upward.
56. Zone: District into which the community is divided where specific regulations are applicable.

ARTICLE III

ZONING DISTRICTS

Section 1.- DISTRICT:- To effectively carry out the provisions of this Ordinance, the City is hereby divided into conservation, agricultural, urban/urbanizing, residential, commercial, industrial, institutional, open-space and special use districts.

1. Residential are as further divided and classified into low/medium and high-density or R-1, and R-2 districts, respectively.
2. Commercial areas are further divided and classified into mainly commercial and commercial-industrial or C-1 and C-2, districts, respectively.
3. Industrial areas are divided and classified into non-pollutive and pollutive or I-1 and I-2 districts, respectively.

Section 2. - ZONING MAPS: There is hereby adopted as an integral part of this ordinance two Official Zoning Maps, namely: the Detailed Official Zoning Map and the Comprehensive Official Zoning Map, wherein the designation, location and boundaries of the districts/zones herein established are shown and indicated by appropriate legend.

The Official Zoning Maps shall be identified by the signature of the City Mayor attested to by the Zoning Administrator and bearing the seal of the City of Davao under the following words: "This is to certify that this is official zoning map referred to in Ordinance No. _____, series of 19____."

Changes shall be entered on the Official Zoning Maps promptly after the amendment is passed by the Sangguniang Panlungsod and approved by the City Mayor, with an entry on the Official Zoning Maps as follows: "On _____, under Ordinance No. _____, Series of _____, the following changes were made in the Official Zoning Maps (Brief of Description of nature of change)", which entry shall be signed by the Zoning Administrator. Approved amendments to this Ordinance shall be indicated on the Official Zoning Maps by the Zoning Administrator within a week from receipt thereof.

Resolution No. 894, Ordinance No. 363,
series of 1982, cont'd.

No changes of any nature shall be made in the Official Zoning Maps on matters shown thereon except in conformity with the procedures set forth in the ordinance.

Regardless of the existence or purported copies of the official zoning maps which may from time to time be made published, the Official Zoning Maps in a tracing paper or cloth which shall be located in the Office of the Zoning Administrator, shall be the final authority as to current zoning status of land and water areas, buildings and other structures in the City.

At the beginning of every fiscal year, the Zoning Administrator shall furnish an up-dated copy of the official zoning maps to the City Mayor and the Sangguniang Panlungsod for their file and reference.

In case of loss, damage, destruction, and/or extreme difficulty in the interpretation of the Official Zoning Maps, the Sangguniang Panlungsod, may, by resolution adopt new Official Zoning Maps which likewise shall be in accordance with the Comprehensive Development Plan of the City:

Section 3.- DISTRICT BOUNDARIES: The district boundaries are delineated on the Official Zoning Maps.

Section 4.- INTERPRETATION OF DISTRICT BOUNDARIES:- In the interpretation of the boundaries fixed for any of the districts shown in the Zoning Maps, the following rules shall apply:

1. Where district boundaries are so indicated that they approximately follow the center of the streets, or highways, street lines, or highway right-of-way lines, such line shall be construed to be their respective boundaries.
2. Where district boundaries are so indicated that they approximately follow the property lot lines, such lines shall be construed to be the boundary lines.
3. Where district boundaries are so indicated that they are approximately parallel to the center lines or street lines of streets or the center lines of right of way lines, or of highways, such district boundaries shall be construed as being parallel thereto and at such instance therefrom as indicated in the Official Zoning Maps.
4. Where the boundary of a district follows a railroad line, such boundary shall be deemed to be located in the middle of the main tracks of railroad line.
5. Where the boundary of a district follows a stream, lake or other bodies of water, said boundary line shall be deemed to be at the limit of political jurisdiction of the community unless otherwise indicated as following shorelines shall be construed to follow such shorelines and in the even change in the shorelines, shall be construed as moving with the actual shorelines.
6. Where a boundary line divided a lot or crosses unsubdivided property, the location of such boundary shall be as indicated in the Official Zoning Maps, using the scale on such Maps.

Resolution No. 894, Ordinance No. 363,
series of 1982, cont'd.:

7. Where an imaginary zone boundary line divides a lot which was in single ownership at the time of passage of this Ordinance, the Zoning Administrator may permit, as special exemption, the extension of the regulations for either portion of the lot not to exceed thirty (30) meters beyond the zone line into the other portion of the lot.
8. Where a zoning boundary line is indicated on the Official Zoning Maps, one block deeper or a fraction thereof, such boundary line shall be scaled or determined by the Zoning Administrator.
9. When reclamation is undertaken in accordance with law, or accretion occurs and in foreshore areas, the district boundaries for these areas shall be interpreted in the same manner as the adjacent districts.

ARTICLE IV

DISTRICT REGULATIONS

Section 1.- OTHER TYPES OF LAND USES/BUILDINGS:- The location of any building or structure not mention in this Ordinance shall be classified by the Sangguniang Panlungsod upon recommendation of the Planning and Development Board.

Section 2. -USE REGULATIONS IN CO. DISTRICT: A District shall be mainly for environmental protection and conservation purposes and other compatible uses. Within the District, the allowable uses are as follows:

1. Commercial forests and forest reserves.
2. Limited agricultural and open field recreational activities
3. Frontier and ethnic settlements
4. Buildings incidental to the function of the Co. District; Provided, that they do not pose adverse environmental impact.

The following conditions shall be complied with by all uses and buildings/structures allowed in the Co. District.

1. No structure or building shall obstruct the view of line of vision of an observer/passersby/tourist standing or situated along a road or thoroughfare from such road or thoroughfare, to the scenic area whose beauty is sought to be preserved;
2. All constructions or developments must enhance the scenery and all buildings or structure built therein shall blend with the natural surrounding in terms of architectural design and outside paint;
3. Billboards shall be prohibited in the conservation/preservation zones;
4. Pollutive industries or activities shall not be allowed in such zones.

Resolution No. 894, Ordinance No. 363,
series of 1982, cont'd.:

Section 3.- USE REGULATIONS IN AG. DISTRICT: The AG. District shall be principally for public and private agricultural farms, and other compatible uses. The following are the allowable uses under this District:

1. All uses allowed in Co. Districts
2. Primary and Upper Croplands
3. Pasture Lands
4. Fishponds and Swamplands
5. Agricultural Settlements
6. Buildings incidental to the function of the AG District; Provided, that they do not pose adverse environmental impact.

Section 4.- USE REGULATIONS IN URURG DISTRICT:- An URURG District shall be primarily for urban uses and other compatible uses. Refer to the Detailed Official Zoning Map concerning the different zones in this District. Proposed urban uses within the URURG District not covered by the Detailed Official Zoning Map shall be classified accordingly by the Sanguniang Panlungsod.

Section 5.- USE REGULATIONS IN R-I DISTRICT: (Shaded yellow in expanded zoning map)- A R-I District shall be principally for residential purposes of low and medium densities, and other compatible uses. The following are the allowable buildings, structures and land uses within R-I District:

1. All uses allowed in OP Districts
2. One detached family dwelling
3. One semi-detached family dwelling
4. Two detached family dwelling
5. Two semi-detached family dwelling
6. Customary accessory uses like:
 - 6.1 Servant's quarters
 - 6.2 Private garage
 - 6.3 Guard house
 - 6.4 Others of similar nature
7. Home occupation for the practice of one's profession or for engaging in in-house business or industries such as dressmaking, tailoring, baking, running a sari-sari store and the like, provided that:
 - 7.1 Only members of the family residing within the premises shall be engaged in such home occupation;
 - 7.2 The use of the dwelling unit for home occupation shall be clearly incidental and subordinate to its use for residential for purpose by its occupations and for the conduct of the home occupation, not more than twenty-five percent (25%) of the floor area of the dwelling unit shall be used;

Resolution No. 894, Ordinance No. 363,
series of 1982, cont'd.

- 7.3 As much as possible there shall be no change in the outside appearance of the building or premises;
- 7.4 No home occupation shall be conducted in any accessory building;
- 7.5 No traffic shall be generated by such home occupation in greater volume than would normally be expected in a residential neighborhood and any need for parking generated by the conduct of such home occupation shall be met off the street and in a place other than in a required front yard;
- 7.6 No equipment or process shall be used in such home occupation which creates noise, vibration, glare, fumes, odors or electrical interference detectable to the normal senses of the lot, if the occupation is conducted in a single-family residence or outside the dwelling unit if conducted in a place other than a single family residence. In the case of electrical interference, no equipment or process shall be used which creates visual or audible interference in any radio or television receivers or causes fluctuation in line, voltage off the premises.
- 7.7 And that, not more than five (5) outsiders or hired helpers, assistants or employees may be employed.
8. Recreational facilities for the exclusive use of the members of the family residing within the premises, like:
 - 8.1 Swimming pools
 - 8.2 Pelota, tennis and basketball courts
 - 8.3 Clubhouses and the like.
9. Multi-family dwellings with not more than five (5) families residing.
10. Apartments of not more than five (5) doors
11. Boarding houses accommodating not more than five (5) boarders.
12. Nurseries and day care centers.
13. Kindergarden, elementary and high schools
14. Dancing schools provided they do not exceed two (2) classrooms (more or less 7.00 x 9.00mts/classroom).
15. Chapels, churches and other places of worships and seminaries
16. Small hospitals, clinics, nursing and convalescent homes with not more than five (5) bed capacity.
17. Retail Drugstores

Resolution No. 894, Ordinance No. 363,
series of 1982, cont'd.,

18. Filling Stations located at least one hundred (100) meters away from the nearest residence or any other structure, including filling station belonging to competitors.
19. Public and semi-public institutions:
 - 19.1 District Halls
 - 19.2 Community, Barangay or neighborhood centers
 - 19.3 Health and puericulture centers
 - 19.4 Museums and libraries
 - 19.5 Police and fire stations
20. Garden and plant nurseries provided no manure of foul odor or dust providing substance shall be restored.
21. Three to five stars hotels
22. Commercial centers incidental to residential subdivisions, such as shopping centers, billiards, beauty parlors, movie houses, restaurants, markets and bakeries, within the subdivision's designated commercial area.
23. No domestic animals, except dogs, cats, birds and fowls shall be permitted to be kept in this District.

Section 6. - USE REGULATIONS IN R-2 DISTRICTS: (Shaded orange in expanded zoning map) - A R-2 District shall be mainly for residential purposes of high and other compatible uses. The following are the compatible uses allowed thereon:

1. All uses allowed in R-1 District
2. Multi-family dwellings
3. Residential condominiums and tenements
4. Hotels, inns and pension houses excluding motels
5. Apartments, homotels and apartels
6. Boarding houses and dormitories
7. Vocational schools
8. Clinics, hospitals, nursing or convalescing homes with not more than fifty (50) bed capacity except those for animals, for insance and for contagious diseases.
9. Home occupation as provided for in R-1 District except that not more than ten (10) outside or hired helpers, assistance, employees may be employed; Provided that no mechanical equipment is used, except such permissible for purely domestic or household purposes.
10. Clubhouses and lodges
11. Backyard raising of animals and fowls, provided that:
 - a) They are undertaken only for family consumption
 - b) No undue noise is created by these pets and fowls
 - c) No fowl smell is emitted
 - d) Other sanitary requirements enforced in the City are complied with.

Resolution No. 894, Ordinance No. 363,
series of 1982, cont'd.:

12. Parking lots and parking buildings
13. Messengerial services
14. Offices with no actual display, sale, transfer on handling of commodities in the premises.
15. Orphanages and homes for the aged.
16. Neighborhood stores
17. Personnel service shops such as beauty parlors, barber shops and the likes excluding sauna bath and massage clinics.
18. Dry cleaning and laundries with machinery of not more than 5 horse power of electric motor.

Section 7.- USE REGULATIONS IN C-1 DISTRICT: (Shaded red in expanded zoning map)- A C-1 District shall be for commercial uses, and other compatible uses. Within the District, the following kinds of establishments shall be allowed:

1. All uses and buildings permits in R-2 and in Districts
2. Office like:
 - 2.1 Office building
 - 2.2 Office condominiums
3. Stores and shops like:
 - 3.1 Department stores and shopping centers
 - 3.2 Books and office supply and equipment stores and other incidental service shops
 - 3.3 Home appliances and their incidental service shops
 - 3.4 Pet and flower shops
 - 3.5 Radio, TV; watch, locksmith and other light electrical and mechanical equipment repair shops
 - 3.6 Pawnshops and one repair shop.
 - 3.7 Cottage and home industries retail shops
 - 3.8 Auto Supply, and other car accessory and spare parts
 - 3.9 Printing shops and publishing houses
 - 3.10 Photo and advertising shops
 - 4.1 Record and musical instrument stores
 - 4.2 Wholesale establishments/stores or offices with storage facilities for display of commodities/items for sale.
4. Food markets and shops like:
 - 4.1 Markets and supermarkets and other commercial stands
 - 4.2 Wine stores and groceries
5. Recreational centers like:
 - 5.1 Movie houses and theaters

Resolution No. 894, Ordinance No. 363,
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- 5.2 Peleta, tennis and basketball courts
- 5.3 Swimming pools
- 5.4 Day and night clubs, cabarets and beer houses
subject to provisions of R.A. 1224, P.D. Nos. 252
and 856, and other laws and guidelines.
- 5.5 Billard Hall
- 5.6 Bowling lanes. Provided that it is located not
less than 50 meters from any institutional or
residential structures.
- 5.7 Gymnasia and auditoria with off-street parking
consistent with the providing standards of P.D.
1096.
- 6. Personal service shopslike:
 - 6.1 Beauty parlors and barber shops
 - 6.2 Sauna bath and massage clinics subject to other laws
 - 6.3 Dressmaking and tailoring shops
 - 6.4 Laundries and laundromats
- 7. Restaurants and eateries
- 8. Beer/pub houses, bar and disco joints provided that it
is located not less than 200 meters from any institutional
buildings or land uses
- 9. Short term special education like:
 - 9.1 Dancing Schools
 - 9.2 Schools for self defense
 - 9.3 Driving schools
 - 9.4 Speech clinics
- 10. Costodial services like:
 - 10.1 Security guard
 - 10.2 Manpower services
 - 10.3 Janitorial services
- 11. Radio and television stations
- 12. Hardware or building/construction materials stores or
establishments including their adjacent incidental storage
facilities (excluding combustible/inflammable polluting/
offensive materials)
- 13. Manufacture of bakery products including bread, cakes,
biscuits, doughnuts, hopia, apa, wafer and other similar
products.
- 14. And any other commercial uses of similar nature

Resolution No. 894, Ordinance No. 363,
series of 1982, cont'd.:

Section 8.- USE REGULATIONS IN C-2 DISTRICTS: (Shaded light red in the Expanded Zoning Map)- A C-2 District shall be dominantly for commercial and compatible industrial uses and other compatible uses as provided hereunder:

1. All uses allowed in C-1 District
2. Repair shops like:
 - 2.1 House appliance repair shop
 - 2.2 Motor vehicles and accessory repair shops
 - 2.3 Home furnishing shops
 - 2.4 Electrical and mechanical equipment repair shops
3. Mortuaries and crematory services and embalming establishments, subject to the approval of the City Health Department.
 - 3.1 Funeral Parlors/Memorial Homes with adequate off street parking space (see parking standards of PD 1096) and provided that they shall be established not less than 50 meters from any residential structures, churches and other institutional buildings.
4. Motels provided it is located not less than 200 meters from any institutional buildings/structures.
5. Second hand establishment, or stores dealing in second hand items particularly general merchandise/dry goods but excluding junkyards.
6. Cottage and home industries including repacking and re-bottling.
7. Cold storage
8. Mobile and stationary light and heavy machineries and equipment stores.
9. Ice, ice cream and ice drop plants with machineries/devices not to exceed 150 horse power.
10. Plants for tire, recapping, vulcanizing, woodwork, machine, steel, metal workshops, with electric motor not to exceed 75 horse power.
11. Race tracks, jai-alai prontos and cockpits, subject to revised Administrative Code and P.D. Nos. 449, 1140 and 1310 and other laws and guidelines with adequate off street parking spaces (see parking standards of P.D. 1096).
12. Other commercial establishments of similar nature.
13. Manufacture of noddles including macaroni, spaghetti, vermiceli, bijon, and mique.
 - 13.1 Manufacture of wearing apparels, including custom tailoring and dressmaking shops, hats, clothes, handkerchiefs, heckwear and related clothing accessories, including raincoats, leather jackets and other leather proof outer garments.

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- 13.2 Manufacture of musical instruments including organs, pianos, wind and percussion instruments, string instruments and the like.
- 13.3 Manufacture of office, computing and accounting machineries including typewriters, cash registers, weighing and duplicating machines and electric data processing machines.
- 13.4 Manufacture of sporting and athletic good (except firearms) including gloves and mitts, sporting balls, gym and playground equipments and sporting tables.
- 13.5 Manufacture of radio, television and communication, equipments including radio and television receiving sets, telephone and telegraphic equipments, tape recorders and other sound recording equipments, phonographs or record players and other electric apparatuses.
- 13.6 Manufacture of hollow, decorative blocks, concrete pipes and other masonry products.
- 13.7 Lumberyards strictly for display
- 13.8 Manufacture of professional and scientific measuring and controlling equipments including thermometers, ammeters, barometers, chemical balance, plumb bobs, rain gauges, taximeters, thermostat, water meters and the like.
- 13.9 Manufacture of medical, surgical supplies and equipments including adhesive tapes, antiseptic dressing, sanitary napkins, surgical gauge, orthopedic and prosthetic appliances and other medical equipments.
- 13.10 Manufacture of photographic and optical goods including eyeglasses and spectacles, optical lenses, and related goods.
- 13.11 Manufacture of watches and clocks and other signal and detection equipments.

Section 9.- USE REGULATION IN I-1 DISTRICTS:- (Shaded light violet in Expanded Zoning Map)- I-1 District shall be primarily manufacturing industries classified as non-pollutive and non-hazardous (NP/NH), non-pollutive and hazardous (NP/NH) and other compatible uses as provided hereunder.

- 1. All uses allowed in C-2 District.
- 2. Non-pollutive and hazardous (NP/NH) such as:
 - 2.1 Manufacture of garments, textile bags, canvas bags and other canvas products, jute bags, life belts, embroideries and house furnishings.
 - 2.2 Manufacture of footweares including shoes, slippers and sandals.

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- 2.3 Manufacture of products of leather and leather substitutes including luggage, handbags, wallets and similar products.
- 2.4 Manufacture of wood, bamboo, rattan, nipa and other indigenous material products including roofing materials, furniture, curtain, carvings and other crafts.
- 2.5 Manufacture of pulp stationaries and other related articles.
3. All food processing and bottling plants provided that they install adequate anti-pollutive devices.
4. Woodwork, steel, and metal factories with electric motors not to exceed 250 hp. including their incidental facilities like kiln dryer for exclusive use of their own products.
5. Cigar, cigarette and chewing tobacco factories.
6. Rope factories utilizing electric motor
7. Plastic industries utilizing electric motor
8. Nails, bolts, nuts, and drew factories
9. Glue and Gelating plants not using animal wastes as raw materials, with adequate anti-pollution devices
10. Radio and TV relay or transmitting stations
11. Electrically fired foundries and assaying laboratories
12. Open Storage: Provided they are located at least 50 meters away from institutional and residential buildings.
13. Lumberyards with light sawmill not to exceed 150 h.p.
14. Public utility bus terminals/garage/where such vehicles are stored, kept, maintained and repaired including storage facilities for spare parts and other accessories.
15. Warehouse for copra, carbon, forest products, coffee, fertilizers, rice, corn, cement, sugar, hemp and similar fibers including goods, wares, merchandise and other utilities.
16. Light rice and corn mills not to exceed 150 h.p.
17. Junk yards and scrap iron establishments
18. Batching Plants for asphalt and similar products
19. And other industries of similar nature.

Section 10.- USE REGULATION IN 1-2 DISTRICT- (Shaded in violet in Expanded Zoning Map) 1-2 District shall be dominantly for manufacturing industries classified as non-pollutive and extremely hazardous (NP/EH), pollutive and non-

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hazardous (P/NH), pollutive and hazardous (P/H), pollutive and extremely hazardous (P/EH), highly pollutive and non-hazardous (HP/NH), high pollutive and extremely hazardous (HP/EH) by the Ministry of Human Settlements and all customary support facilities and services to said district.

1. All uses allowed in I-1 except feed and drinks processing and bottling plants, however, the same may be allowed upon approval of the City Executive and recommendation of the City Planning and Development Board and proper evaluation of the Zoning Administrator.
2. Large scale coconut, vegetables and other oil processing/manufacturing plants with adequate anti-pollution device(s).
3. Plywood and veneer processing plants or factories
4. Heavy wood processing or manufacturing plants or factories
5. All other large scale manufacturing or Processing Plants, provided that they install adequate anti-pollution device(s).

Section 11.- USE REGULATIONS IN IN. DISTRICT: (Shaded blue in Expanded Zoning Map)- An In. District shall be mainly for institutional uses whether public or private, and other compatible uses. The allowable uses within this district are as follows:

1. All government institutional buildings
2. All types of religious buildings
3. All levels of educational complexes
4. All kinds of cultural and historical landmarks and structures
5. Public and private hospitals, clinics, health centers and the like
6. Special public and private institutional buildings
7. And any other institutional buildings and land uses of similar nature.

Section 12.- USE REGULATIONS IN OP. DISTRICT: An OP. District shall be primarily for open space uses, and other compatible uses as provided hereunder:

1. Parks and Playgrounds
2. Beach Resorts
3. Camp sites
4. Open field cultural and historical sites
5. Golf courses and other athletics fields
6. Botanical and Zoological Gardens
7. Arboretum
8. Agricultural uses excluding fowl and animal raising
9. Building incidental to the functions of the OP. District.

Section 15.- USE REGULATIONS IN SP. DISTRICT - (Shaded yellow-green in expanded zoning map) - A SP. District shall be mainly for buildings, structures and land uses cited hereunder which are classified as special uses. Their locations shall be determined on a case to case basis subject to the approval of the Sangguniang Panlungsod and consistent with the requirement below:

1. Dumping Sites:

- 1.1 Adequate fencing shall be put up to prevent undue scattering of waste
- 1.2 Poisoning of rats and spraying of flies and the general maintenance of the dumping site shall be the sole responsibility of the applicant.
- 1.3 The dumping site shall not be located outside of the applicant's premises if private.
- 1.4 It shall be located at least one hundred (100) meters away from the nearest known/identified water table or potable water source, and should at least be one (1) kilometer away from the nearest residential zone or fifteen to twenty minutes travel time by garbage truck.
- 1.5 It shall not be located along waterways, rainfallow and drainage channels.
- 1.6 A written authority to establish and operate shall be obtained from the City Health Department.

2. Incineration plants

- 2.1 They shall not be located within residential zones
- 2.2 They shall not constitute safety hazardous to the adjacent land uses and to the community in general.
- 2.3 They shall provide anti-pollution devices (s) and acquire clearance and certificate of anti-pollution compliance from the National Pollution Control Commission.
- 2.4 Their sound maintenance shall be the sole responsibility of the applicants and/or the person running them.

3. Cemeteries and memorial parks:

- 3.1 They shall be located outside of or within reasonable distance from highly populated area.
- 3.2 Their proper maintenance shall be the exclusive duty of the applicant or persons running them.
- 3.3 They shall not contaminate sources of water
- 3.4 A written authority to construct and operate shall be obtained from the City Health Department
- 3.5 They shall comply with all the pertinent provisions of the National Building Code of the Philippines (P.D. No. 1990).

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4. Satellite ground stations -

4.1 They shall obtain locational approval from the Ministry of Human Settlement

4.2 They shall obtain clearance and certificate of anti-pollution compliance from the National Pollution Control Commission.

5. Private landing strip, runways, heliports and helipads -

5.1 They shall not be located within residential areas

5.2 A written authority to construct and operate shall be obtained from the Civil Aeronautics Administration by the applicant, and a notice shall be posted or published in at least one of the daily newspapers to determine public opposition to the proposed landing site.

Section 14.-, HEIGHT REGULATIONS: The heights of the building and structure shall be measured in accordance with the procedure set forth in the National Building Code of the Philippines (see Section 707, P.D. No. 1096).

1. For Co., AG., and OP. District:

No building or structure for human occupancy, shall exceed nine and one-half (9½) meters in height and shall not contain more than two (2) stories.

2. For R-1 District:

No building or structure for human occupancy shall exceed thirteen and one-half (13½) meters in height and shall not contain more than three (3) stories.

3. For R-2 District:

No building or structure for human occupancy shall exceed fifteen (15) meters in height and shall not contain more than four (4) stories.

4. For all other Districts:

Heights limitation of building or structure for human occupancy shall follow provisions of the National Building Code of the Philippines (P.D. No. 1096).

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5. The height limitation of building or structure critical to airplane flight paths or along air traffic routes shall be determined by the Civil Aeronautic Commission; provided, however, that it will not exceed the maximum height required in the particular District.

SECTION 15- AREA REGULATIONS: The measurement of lot occupancy shall be in accordance with the procedure set forth in the National Building Code of the Philippines (see Section 802, P.D. No. 1996). Lot occupancy shall be subjected to the provisions on Basement of Light and the Civil Code of the Philippines (see Section 708, P.D. No. 1096).

1. For R-1, - The lot area shall not be less than one hundred eighty (180) square meters for a single-family dwelling; two hundred forty (240) square meters for a two-family dwelling with a lot width of not less than ten (10) meters.
2. For R-2 - The lot area shall not be less than one hundred (100) square meters for a single-family dwellings; one hundred sixty (160) square meters for a two-family dwelling with a lot width of not less than eight (8) meters.
3. For R-1 and R-2 Districts: - The dwellings shall occupy not more than ninety (90) percent of a corner lot and seventy (70) percent of inside lot; and shall be at least two (2) meters from the property line on its side and rear portions and at least three (3) meters from the property line at its frontage. The dwelling may, however, on any of its side and rear portion, occupy up to the property line provided that firewall be constructed on that part of the building which abutts property line.
4. For C-1, C-2, I-1, I-2 and IN. - When a building is designed or intended to be used or is used for purely residential purposes, it shall have a lot area of not less than one hundred (100) square meters for a single-family dwelling and not less than one hundred sixty (60) square meters for two-family dwelling. The dwelling shall occupy not more than ninety (90) percent of a corner lot and eighty (80) percent of an inside lot, and shall be at least two (2) meters from the property line (see Section 708, PD No. 1096) on its side and rear portions and at least three (3) meters from the property line at its frontage. Institutional, business and/or industrial building in corner lots shall cover not more than ninety (90) percent of the total area of the lot and not more than eighty five (85) percent if they are on inner lots. All buildings may, on any of its side and rear portions occupy up to the property line provided that firewall is constructed on that part of the building which abutts said line.
5. Area regulations concerning social/low-cost subdivisions may be exempted from these provisions subject to the approval of the National Housing Authority.

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ARTICLE V

SUPPLEMENTARY REGULATIONS

Section 1.- GENERAL DISTRICT REGULATIONS:- Unless otherwise herein provided, the following supplementary regulations shall be uniformly observed in each district.

1. No building, structure of land shall be used, or occupied, and no building or structure or part thereof shall hereafter be erected, constructed or reconstructed, moved or structurally altered except in conformity with the provisions of this ordinance and the National Building Code of the Philippines (P.D.No. 1096) and all the implementing rules and regulations issued thereof.
2. Specifically, in accordance with this Ordinance, no building or other structure shall hereafter be erected or altered:
 - 2.1 To exceed the prescribed height in the particular area
 - 2.2 To accommodate or houses a greater number of families
 - 2.3 To reduce lot area and/or dimension
 - 2.4 To occupy a greater percentage of lot area; and to
 - 2.5 To have narrower or smaller yard requirement contrary to the provisions of this Ordinance.
3. No part of a yard, off-street parking space, loading space, or other open spaces required of any building, shall, for the purpose of complying with this Ordinance, be included as part of the yard, open space, off-street parking or neighboring building.
4. No yard or lot existing at the time of the passage of this Ordinance shall be reduced in dimension or area below the minimum requirements set forth herein.

Section 2.- TRAFFIC GENERATORS:- All traffic generating buildings and structure allowed in any of the districts must provide parking spaces for their employees, clients and visitors in accordance with the standards set forth by the National Building Code of the Philippines (P.D. No. 1096)

Section 3. - ADVERTISING AND BUSINESS SIGNS:- Advertising and business signs to be displayed or put up for public view in any of the district herein enumerated must comply with the provisions of the National Building Code of the Philippines (P.D. No. 1096) and existing rules and regulations or those which may later on be enacted by the City.

Section 4.- ERECTION OF MORE THAN ONE PRINCIPAL STRUCTURE:- In any district where more than one structure may be permitted to be enacted on a single lot, the yard and other requirements of this Ordinance shall be met for each structure as though it were erected on an individual lot.

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Section 5- Dwelling on Rear Lots: - No building used or designated to be used as residence shall be allowed in any rear lot unless such lot has a right-of-way easement over a path of at least four meters leading to a street. Two or more buildings, however, may be allowed on a corner path if the right-of-way easement is at least six meters wide.

Section 6.- STRUCTURE TO HAVE ACCESS:- Every building hereafter created or moved shall access to a public street or an approved private street, and all structure shall be so located on lots as to provide safe and convenient access for servicing, fire protection and shall have the required off-street parking.

Section 7.- DWELLING GROUP:- When it is impracticable to apply the requirement of this Ordinance to individual building unit in a residential compound consisting of two or more buildings, a permit for the construction of such compound may be issued provided that the plan thereof conforms to the following conditions:

- 7.1 That the building are to be used only for residential purposes and each accessory use are permitted in the district where the compound is located.
- 7.2 That the average lot area per family or dwelling unit in the compound, exclusive of the area used, or to be used for streets, or driveways, is not less than the lot area per family required in the district.
- 7.3 That there is provided, within the tract on which the residential compound is to be located, an open space for playground purposes within an area equivalent to at least an aggregate area of five percent of the required lot area per family, but in no case less than one hundred square meters, provided that where the residential compound is intended for less than ten families, the setting aside of such area for playground purposes may be dispensed with, and provided further, that when an open space for playground purposes is set aside, this open space may be as part of the yard requirements for the compound.
- 7.4 That there is provided, within the tract on which the residential compound is to be erected or immediately adjacent thereto, the required private garage or off-street parking area, depending on the needs of the residents and their visitors.

Section 9.- INNOVATIVE TECHNIQUES OR DESIGNS:- When it is impracticable to apply the requirements of this Ordinance to certain developments the Zoning Administrator may on grounds of innovative development techniques, grant a special development permit for the purpose; provided the following conditions are complied with:

1. That the proposed land area use will not alter the essential character of the zone, especially its population density, number of dwelling units per hectare, and the dominant land use of the zone.

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2. That the area subject of application is a consolidated parcel of land of at least one (1) hectares,
3. The preliminary development plan must generally set forth any existing or proposed arrangements of lots, streets, access points, buffer strips, and rail, water, highway or other transportation arrangements and the relationship of the tract of land involved to surrounding properties.
4. That final development plan must, in addition to the above cited requirements, describe the noise, smoke, odor, vibration, dust, dirt, noxious gases, glare and heat, fire hazards, industrial waste and traffic which may be produced by the development.
5. The final development plan must be submitted to the City Planning and Development Board for review and recommendation, and to the City Executive for approval.
6. If the proposed development will alter the essential character of the zone and existing proposed road(s) then the approval of the Sangguniang Panlungsod is deemed necessary.

ARTICLE VI

ENVIRONMENTAL MANAGEMENT

Section 1.- PERFORMANCE STANDARDS: - All land uses, developments or constructions shall conform to the following standards:

1. Noise and vibrations -

All noise and vibration-producing machinery shall be enclosed by a building and shall be provided with effective noise absorbing materials, noise silencers and mufflers, an open yard of a distance of not less than twenty (20) meters from the street or adjoining property lines and property planted to dense trees as buffers. To minimize vibration, a machinery should be mounted on shock-absorbing mountings, such as cork set on reinforced concrete foundations or a floating isolated foundation set on piles, as needed by the machinery. Minimum noise which is objectionable due to intermittance, beast frequency or high pitch roof building as tested and approved by the City Officials concerned.

2. Smoke

Any smoke emitted from any source for period aggregating seven (7) minutes in any thirty minutes particularly when starting a new fire shall have a density not greater than No. 2 of the Ringlemann Chart.

3. Dust, dirt, and fly ash

The emission of dust, dirt, or fly ash from any source of activity which shall pollute the air and render it unclean, destructive, unhealthful or hazardous, or cause

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visibility to be impaired, shall not be permitted. In no case whatever shall dust, dirt, or fly ash be allowed to exceed 9.68 grams per cubic meter of fuel gas at stack temperature of 60° centigrade not to create a haze with opaqueness equivalent to or greater than No. 1 of the Ringelmann Chart.

4. Odors and gases

The emission of foul odors and gasses deleterious to public health, safety and general welfare shall not be permitted. Buildings and activity emitting foul odors and noxious gases shall be enclosed by air tight building provided with air conditioning system, filters, deodorizing and other air cleansing equipment.

5. Glare and heat

Glare and heat from any operation or activity shall not be allowed to be radiated, seen or felt from any point beyond the limits of the property.

6. Industrial waste

Industrial plant wastes shall be disposed of only in a manner which will not create any nuisance or danger to adjoining properties or to the community in general.

7. Sewerage disposal

No sewerage dangerous to the public health, safety and general welfare shall be discharged into any public sewer system, natural waterway or drainage channel. In addition to the following requirements, all sewage shall comply with pertinent requirements of the National Pollution Control Commission.

Acidity or alkalinity shall be neutralized to a PH of between 6.5 and 8.5 as a daily average on a volumetric basis with a temporary variation of 5.0 to PH 10.0

Waste water shall not contain oil and grease in excess of 300 PPM or exceed a daily average of 10PPM.

Section 2.- ENVIRONMENTAL IMPACT ASSESSMENT/STATEMENT:-
Major constructions/development/activities may be required by the Zoning Administrator to submit an Initial Environment Examination (IEE) and/or Environmental Impact Statement (EIS). If so required, the following shall be submitted by the applicant:

1. Detailed description of the proposed development or action.construction.
2. Detailed description of the physical, biological, social environment within which the development construction will occur.
3. Detailed description of existing plans which will be affected by the proposed development action.

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4. Detailed description of other actions planned, or in the course of realization, which will interest with the proposed action, so as to increase or reduce the environmental impact.
5. Detailed description of probable direct, and induced, impact of the proposed action, on the physical biological, and social environment.
6. Comparison of impact of alternative actions
7. Special emphasis on adverse effects, long term effects, resource commitments, cost benefit analysis.

Section 3.- POLLUTION CONTROL:- For effective pollution control, all manufacturing industries classified as pollutive by the Ministry of Human Settlements and pollutive agricultural buildings or structures shall provide proper anti-pollutive devices and acquire clearance and certificate of anti-pollution compliance from the National Pollution Control Commission.

Section 4.- BUFFER STRIP/EASEMENTS:- In the utilization, exploitation, development, conservation and protection of water resource the following setbacks and/or easements along the entire length of the banks of rivers, creeks and streams, shores of the sea, lakes all waterways shall be observed:

1. Twenty (20) meters setback along banks of waterways in urban areas.
2. Forty (40) meters easement for the same in all agricultural and forestal areas.
3. Seventy five (75) meters for shores of the seas, lakes and similar bodies of water.

The above setbacks/easements shall be subject for public use such as for recreation, navigation, floatage, fishing salvage and other activities. The easement shall be measured in accordance with the procedure set forth in the National Building Code of the Philippines (P.D. No. 1096).

Section 6.- CULTIVATION/UTILIZATION OF RIVER BEDS AND SAND BARS:- No river beds or sand bars shall be subject of cultivation or utilization except upon prior recommendation of the City Planning and development Board and upon prior permission of the Secretary of the Department of Public Works Transportation and Communication. Provided further that no permission shall be granted if it obstruct the flow of water, or if it shall increase the flood levels so as to cause damage to other areas.

ARTICLE VII

NON-CONFORMING USES, EXCEPTIONS
AND VARIANCES

Section 1.- EXISTING NON-CONFORMING USES AND BUILDINGS:- All existing buildings or structures and land uses legally authorized under previous ordinance which do not conform to this Ordinance at the time of its adoption are considered non-conforming uses.

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The lawful uses of these non-conforming buildings or structures and land uses may be continued, provided:

1. That in the application for Certificate of Non-conformance, the owner or agent of the property involved shall identify the existing building(s) legally occupied by the nonconforming use at the time of the adoption of this Ordinance.
2. That no such non-conforming use shall be enlarged or increased or extended greater than one hundred per cent (100%) of the existing floor area of building or structure already occupied by such use at the time of the adoption of this ordinance. Provided further that all needed anti-pollution devices are installed.
3. That no such non-conforming use which has ceased for more than one (1) year or has been changed to a use permitted in the district in which it is located be again revived as a non-conforming use.
4. That any non-conforming structure, or one or more of a group of non-conforming structures related to one use and under one ownership, which has been damaged by more than 50% by fire, flood, explosion, earthquake, war, riot or other such force majeure shall not be reconstructed and used as before. Any reconstruction in it is regard shall be in conformity with the provisions of this ordinance.
5. That no such non-conforming use may be moved in whole or in part or to replace any conforming use.
6. That no such, non-conforming use shall be changed to another non-conforming use.
7. Should such structure be moved for any reason to any distance whatsoever, it shall thereafter conform to the regulation of the district in which it is moved or relocated.
8. That pollutive non-conforming uses shall provide necessary pollution abatement not later than two (2) years from the time of adoption of this Ordinance.

Section 2. - ILLEGAL NON-CONFORMING USES AND BUILDINGS:

Existing buildings/establishments/structure and land uses not legally authorized or sanctioned under the City's Zoning Ordinance of 1972 cannot avail of the provisions of the proceeding section hereof (Section 1). Such structures/buildings establishments shall be ordered to be altered/modified to conform with the provision of this Ordinance.

Any business originally allowed within such structures/buildings (constructed in violation of the City's Zoning Ordinance of 1972) shall immediately cease as such and that their respective business permits/licenses considered null and void and revoked. Henceforth, only those businesses which are authorized in this Code may be issued permits/licenses to operate/engaged within such structures/buildings.

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FURTHERMORE, buildings/structures/establishments and businesses referred to in this Section cannot avail of the provisions of Section 4 (Deviations) and Section 5 (Exceptions and Variances: Procedures for granting the same) under this Article.

However, non-conforming buildings/structures and businesses (established in violation of the City's Zoning Ordinance of 1972) which have become conforming by the enactment of this Ordinance, are not covered by the provisions of the preceding paragraphs.

SECTION 3.- CERTIFICATE OF NON-CONFORMANCE - A certificate of Non-conformance of all non-conforming uses shall be applied for by the owner or agent of the property involved within six (6) months from the approval of this ordinance.

Failure to make such application within six (6) months shall be presumptive evidence that the property had a non-conforming use after the enactment of this Ordinance, and shall be considered in violation thereof.

The Zoning Administrator shall officially inform/notify the proper Committee of the Sangguniang Panglungsod of all Certificates of Non-Conformance it has issued within two (2) days after its issuance to the applicant.

SECTION 4.- DEVIATIONS - Exceptions and variations of deviations from the provisions of this Ordinance may be allowed by the Zoning Administrator only when the following terms and conditions obtain:

1. Variations:

- 1.1 The property is unique and different from other properties in the adjacent locality and because of its uniqueness, the owners cannot obtain a reasonable return on the property.
- 1.2 Conforming to the provisions of the Ordinance will cause undue hardship on the part of the owner or occupant of the property.
- 1.3 The hardship is not self-created or brought about thru misrepresentation/fraud in the building plans or collusion with building officials.
- 1.4 The proposed variance is the minimum deviation necessary to permit a reasonable use of the property.
- 1.5 The variance will not alter the essential character of the district or zone where the property for which the variance is sought and located, and will not substantially or permanently injure the use of other property in the same district or zone.
- 1.6 The variance will not weaken the general purpose of the ordinance and will not adversely affect the public health safety or welfare.
- 1.7 The variance will be in harmony with the spirit of this Ordinance.

2. Exceptions:

- 2.1 The Exception will not adversely affect the public health, safety and welfare and is in keeping with the general pattern of development in the community.

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- 2.2 The exception will not adversely affect the appropriate use of either property in the same district.
- 2.3 The exception will not alter the essential character of the district where the exception sought is located, and will be in harmony with the general purpose of the ordinance.
- 2.4 The exception will not weaken the general purpose of the regulation established for the specific district.

Section 5.- EXCEPTIONS AND VARIANCES PROCEDURE FOR GRANTING
THE SAME. The procedure for the granting of an exception and/or variance is as follows:

1. A written application for an exception or variance is filed with the Zoning Administrator, indicating the section of this Ordinance under which the same is sought and stating the ground's therefore.
2. The Zoning Administrator shall make preliminary studies on the application and fix the time and place for the hearing, if found necessary.
3. A written notice of the public hearing shall be served on the applicant, The Committee on Planning and Development of the Sangguniang Panlungsod and the owners of the properties adjacent to the property which is the subject of the application, at least fifteen (15) days prior to the scheduled public hearing. Notice of such hearing shall also be posted on the property for which the exception is sought at the City Hall, and in one other public place at least fifteen (15) days prior to the said public hearing.
4. At the public hearing, any party may appear in person or by an agent or attorney.
5. At the hearing all interested parties shall be afforded the opportunity to be heard and based in the evidence and testimonies presented, the Zoning Administrator shall decide on whether or not to grant variances.
6. The Zoning Administrator shall render a decision within sixty (60) days from the filing of application, inclusive of the time spent for public hearing.
7. The exceptions and variances to be granted by the Zoning Administrator shall be approved by the City Executive upon recommendation by the Planning and Development Board.
8. Submit an annual report to the City Mayor on the status of the land uses of the City, including the number, nature and character of permits granted or denied, non-conforming uses, variances, exceptions, innovative techniques special and temporary uses, and conditions imposed thereon.
9. Take any other action authorized by this ordinance to ensure compliance with or prevent violation of its provisions.

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series of 1982, cont'd.:

Section 6. - CERTIFICATION OF ZONING COMPLIANCE - In accordance with the provisions of the National Building Code of the Philippines (P.D. No. 1096) a Certificate of Zoning Compliance shall first be obtained from the Zoning Administrator before any building permit can be granted by the Building Official. Such Certificate of Zoning Compliance shall certify, among others, that the buildings or part thereof covered by the application for a building permit, as well as the proposed use of such building, are in conformity with the provisions of the Zoning Ordinance.

Section 7. - EXPIRATION OF THE CERTIFICATE OF ZONING COMPLIANCE - If the Certificate of Zoning Compliance is not used for one year from the date of issue, said permit shall be cancelled by the Zoning Administrator and a notice thereof shall be given to the persons affected. Certificates of Zoning Compliance covering a construction not yet started is deemed cancelled when the classification of the district is changed and said construction shall not conform anymore to the new Zoning regulations.

Section 8. - APPEALS - Any person aggrieved by the decision of the Zoning Administrator concerning the interpretation, administration of enforcement of this ordinance may appeal to the Zoning Board of Appeals. Such appeal shall be taken within a reasonable time but not exceeding thirty (30) days from the receipt of the notice of the decision or action taken by the Zoning Administrator by filing with the said administrator and with the Board of notice of appeal specifying the grounds.

The Zoning Administrator shall transmit to the Zoning Board of Appeals all papers constituting the record upon which the action appealed from was taken. The Zoning Board of Appeals shall fix the date, time and place for the hearing of the appeals, give due to notice to the parties and decide the same within a reasonable time but not exceeding sixty (60) days from the filing of the notice of appeal.

Section 9.- CREATION OF ZONING BOARD OF APPEALS - An administrative Board to be known as the Zoning Board of Appeals is hereby created. It shall be composed of five (5) members, two (2) from the government, one of whom shall be a member of the Sangguniang Panlungsod and three (3) from the private sector, to be appointed by the City Executive, and three (3) from the private sector, to be appointed by the City Executive. The Chairman of the Board shall have a term of seven (7) years without reappointment. Two members shall hold office for five (5) years and the other two (2) for three (3) years with reappointment. Appointment to any vacancy shall be only for the unexpired portion of the term of the predecessor. Their honorarium shall be determined by the Sangguniang Panlungsod.

ARTICLE VIII

ADMINISTRATION AND ENFORCEMENT

Section 1.- RESPONSIBILITY FOR ADMINISTRATION AND ENFORCEMENT - This Ordinance shall be administered and enforced by a zoning administrator who shall be appointed by the Minister of Human Settlements (See LOI No. 729) upon the recommendation of the City Mayor.

Section 2.- QUALIFICATIONS OF THE ZONING ADMINISTRATOR - The Zoning Administrator shall be a reputable person of good moral character and shall possess specialized knowledge, training and/or

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series of 1962, cont'd.:

experience in physical planning, zoning, construction and/or design technology.

Section 3.- POWERS AND DUTIES - The Zoning Administrator shall administer and enforce the provisions of this Ordinance. Specifically, he shall have the following powers and duties.

1. To grant or deny, with or without conditions, applications for the granting of exceptions in accordance with the criteria prescribed in Article XII Section 3 and Section 4 of this Ordinance.

2. To grant or deny, with or without conditions, applications for the granting of a variance in accordance with the criteria provided in Article VII Section 3 and Section 4 of this ordinance.

3. To serve notice requiring the removal of any use in violation of this ordinance upon the owner, agent, or tenant of the building or land, or upon the architect, builder, contractor or other persons who commit or assist in any such violation.

4. To issue Certificate of Zoning Compliance as herein provided.

5. To call upon the City Fiscal to institute any necessary legal proceeding to enforce the provisions of this Ordinance. The City Fiscal is hereby authorized to institute the appropriate action of this end. In specific cases, to call upon and recommend to the Building Official to institute proper legal/criminal action for violations of any of the provision this Ordinances in relation to the pertinent provisions of P.D. 1096 (Building Code of the Philippines).

6. To call upon the chief of Police and his authorized agents to assist in the enforcement of this Ordinance.

7. To report to the City Mayor, City Planning and Development Board and the Sangguniang Panlungsod all the exceptions and variances granted so that the Official Zoning Maps can be correspondingly updated and also to report on the progress and problems encountered in the administration and enforcement of this ordinance, making the necessary recommendation thereof.

Section 8.- POWERS OF THE ZONING BOARD OF APPEALS: Decisions of the Zoning Board of Appeals taken to it shall be final except when questions involve the interpretation and application of the development plan or of national/and/or regional physical, land use planning or zoning standards, guidelines, rules or regulations in which case, appeal shall be made to the Ministry of Human Settlements. The Board shall adopt its own rules of procedure to govern the conduct of appeals arising from the administration and enforcement of this ordinance.

Section 9 - ZONING REVIEW - This Zoning Ordinance shall be reviewed every year or sooner when the need arises, by the City Planning and Development Board in coordination with the Zoning Administrator.

Section 10- FUNCTIONS OF THE REVIEW BOARD: - The City Planning and Development Board shall have the following zoning powers and functions:

Continued on Page -33-

Resolution No. 894, Ordinance No. 363,
series of 1982, cont'd.:

1. Review the Zoning Ordinance for the following purposes:
 - 1.1 Determine what amendments or revisions are necessary in the Zoning Ordinance because of changes that might have been introduced in the local development plan.
 - 1.2 Determine what changes would have to be introduced in the local development plan in the light of permits given, and exception and variance granted.
 - 1.3 Identify what provisions of the Ordinance have been difficult to enforce or are unworkable.
2. Recommend to the Sangguniang Panlungsod necessary legislative amendments and the needed changes in the local development plan as a result of the review conducted by it.

Section 11.- SUPERVISORY POWERS OF THE MAYOR:- The MAYOR pursuant to Sec. 9 Art. II of R.A. No. 4344, (Revised Charter of the City of Davao) shall, from time to time, issue such supplemental rules, regulations and guidelines, for the effective and proper implementation, enforcement and administration of the provisions of this Ordinance.

Section 12.- AMENDMENT - The Sangguniang Panlungsod may, from time to time, on its own motion or upon recommendation of the City Mayor and the City Planning and Development Board amend, alter, or repeal this Ordinance or any provision thereof.

However, amendments to any of the provisions under Section 13 (Use Regulations in SP Districts) of Article 3 of this Ordinance shall be preceded by a public hearing whereby the residents within the vicinity/location wherein the proposed structures/buildings are to be established, shall be notified of such hearing.

Non-compliance with the requirement herein imposed shall invalidate any amendment.

Any doubt/controversy/issue over the interpretation/enforcement/implementation of any of the provisions of this Ordinance shall be referred to the SP for the purpose of determining the legislative intent of such provisions.

Section 13.- SUPPLEMENTARY EFFECT OF OTHER LAWS AND DECREES - The provisions of this ordinance shall be without prejudice to the application of other laws, presidential decrees, letter of instructions and other executive or administrative orders vesting national agencies with jurisdiction over specific land areas, which shall remain in force and effect, provided that land use decisions of the national agencies concerned shall be consistent with the development plan of the locality.

Section 14.- BUILDING PERMITS ISSUED PRIOR TO THE ADOPTION OF THIS ORDINANCE - Except as otherwise provided in the National Building Code of the Philippines (P.D. No. 1096) nothing herein contained shall require any change in the plans, construction, and size of any building, structure or part thereof for which a building permit has been duly granted prior to the adoption of this ordinance. Provided that such permits has been issued/granted in accordance with existing Zoning Ordinance.

Section 15.- BUSINESS PERMITS AND/OR LICENSES:- As a supplementary provision to the City's taxing ordinance of 1974, no Business Mayor's permits and/or licenses of any kind shall be granted or issued in favor of any establishment if such establishment is

Resolution No. 894, Ordinance No. 363,
series of 1982, cont'd.:

situated/located in non-conforming areas or in areas where such business or establishment is not allowed under the provisions of this Ordinance particularly Article IV, Sec. 5 to 10, inclusive;

Issuance of Building Permits, Certificate of Compliance, Exception and Variance including business/Mayor's Permit and/or license which are made in violation of this Ordinance are null and void and shall subject the issuing official concerned to prosecution under the Anti-Graft Law (R.A. No. 3019) as amended.

Before issuing/granting any Business/Mayor's Permit or license and to obviate/preclude any duplication or overlapping of functions, the proper official/office charged with the duty of issuing such permit or license, shall first ascertain and determine from the office of the Zoning Administrator whether the location of applicant establishment or business is in accordance with the provisions of this Ordinance.

SECTION 16.- VIOLATION AND PENALTY:- Any person who violate any of the provisions of this ordinance shall, upon conviction, be punished by a fine of not less than One Hundred (P100.00) Pesos but not more than two hundred (P200.00) Pesos or by imprisonment of not less than two (2) months but not exceeding six (6) months or both at the discretion of the Court. In case of violation by a corporation, partnership or association, the penalty shall be imposed upon the curing officers thereof.

Violations for second and succeeding offenses shall be punished by a fine of two Hundred (P200.00) Pesos and six (6) months imprisonment.

SECTION 17.- SEPARABILITY CLAUSE:- Should any section or provision of this ordinance be declared by the courts to be unconstitutional or invalid, such deviation shall not affect the validity of the ordinance as a whole or any part thereof other than the part so declared to be unconstitutional or invalid.

SECTION 18.- REPEALING CLAUSE - All other ordinances, rules or regulations which are in conflict or inconsistent with the provisions of this Ordinance are hereby amended, modified or repealed accordingly.

SECTION 19.- EFFECTIVITY CLAUSE - This Ordinance shall take effect upon approval.

ENACTED: November 17, 1982.

CARRIED, By a majority of ten (10) affirmative votes. (Note: Councillor Feliciano was out when the votes were taken.)

APPROVED:

Cornelio P. Maskarino
CORNELIO P. MASKARINO
Vice Mayor
Presiding Officer

ATTESTED:

Leonila G. Tungpalan
LEONILA G. TUNGPALAN
Acting Secretary, Sangguniang Panlungsod

aba/esa

APPROVED: *Lapsed*, 1982

ATTESTED:

ELIAS B. LOPEZ
Mayor, City of Davao

CESAR R. NUNEZ
City Secretary

Note: It is approved after the lapse of ten days.